

10	Perez vs. TY Caldwell, DDS and Susan Caldwell, DDS 2025-01463289	Motion to Be Relieved as Counsel of Record The motion by Cameron D. Coy of the Law Offices of Cameron D. Coy, to be relieved as counsel of record for J Um DDS Cypress, Inc., is granted. Upon the signing of the order, counsel shall serve the signed order on the client and all parties that have appeared. Cameron D. Coy of the Law Offices of Cameron D. Coy will be relieved as counsel of record for J Um DDS Cypress, Inc., effective upon the filing of the proof of service of the signed order upon the client and all parties. The Law Offices of Cameron D. Coy shall give notice of the ruling. OSC re. Representation of J Um DDS Cypress, Inc. is set 7-20-26 at 9:00 a.m.
11	Sitta, Paige & Associates, Inc. vs. Creative Installations, Inc. 2025-01477302	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Production Motion to Compel Responses to Form Interrogatories Motion to Compel Responses to Request for Production of Documents The unopposed motions by Plaintiff Sitta, Paige & Associates, Inc. dba Paige Floor Covering Specialists (“Plaintiff”) for an order compelling Defendant Creative Solutions, Inc. (“Creative”) to serve responses to Plaintiff’s form interrogatories, set one, and request for production of documents, set one, are GRANTED. <u>Applicable legal authority</u> A propounding party may move for an order compelling responses to interrogatories at any time “[i]f a party to whom interrogatories are directed fails to serve a timely response.” (Code Civ. Proc., § 2030.290, subd. (b).) By failing to serve timely responses, Defendant waived “any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290, subd. (a).) All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (<i>See Leach v. Superior Court (Markum)</i> (1980) 111 Cal.App.3d 902, 905-906.)

A propounding party may move for an order compelling responses to a demand for inspection at any time “[i]f a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response.” (Code Civ. Proc., § 2031.300, subd. (b).) By failing to serve timely responses, Defendant waived “any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).” (Code Civ. Proc., § 2031.300, subd. (a).)

Pursuant to Code of Civil Procedure section 2030.290, subdivision (c), the Court “shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

“Except as provided in subdivision (d), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300, subd. (c).)

The “request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. (Code Civ. Proc. § 2023.040.)

Merits

Plaintiff showed Plaintiff properly electronically served the first set of form interrogatories on Creative on October 14, 2025 and the first set of requests for production on November 14, 2025, and that Creative did not respond to the written discovery. (Gibson Decl. ISO Motion to Compel Responses to Form Interrogatories, ¶¶ 2 and 4, Exhibit 1; Gibson Decl. ISO Motion to Compel Responses to Request for Production of Documents, ROA No. 83, ¶¶ 2 and 4, Exhibit 1.)

Plaintiff’s unopposed motions are granted. Creative shall serve verified Code-compliant responses without objection within 15 days.

No sanctions. Plaintiff did not provide proper notice of Plaintiff’s requests for sanctions. (Code Civ. Proc. § 2023.040; Notice of Motion

		and Motion to Compel Responses to Form Interrogatories; Notice of Motion and Motion to Compel Responses to Request for Production of Documents.) Plaintiff shall give notice.
12	Williams vs. West Coast Casters & Wheels, Inc. 2024-01388763	Motion for Leave to Amend Continued to 09/14/2026